

Arun Mishra v. U.P. Electricity Regulatory Commission

Allahabad High Court · Division Bench · 13 April 2022 · Writ - C No. 10522 of 2022 · **Writ petition dismissed as wholly misconceived; costs made easy**

HEADNOTE

Where a complainant whose complaints led the U.P. Electricity Regulatory Commission to register a suo motu proceeding against a distribution licensee for delay in lodging theft FIRs seeks certiorari to quash the Commission's order relieving him as an intervenor and a mandamus to be allowed to appear, Regulation 20(d)(ii) of the UPERC (Conduct of Business) Regulations, 2019 vests a discretion in the Commission to permit participation only if it considers that participation will facilitate the proceedings and the decision. Filing an intervention application, even after the Commission invited one in proper proforma, does not make the complainant a necessary party or confer a vested right to remain in a suo motu proceeding. Absent cogent material showing why impleadment was necessary, and absent any demonstrated prejudice, the writ court will not substitute its view for the Commission's. The writ is dismissed as wholly misconceived. The Court did not decide whether the licensee had failed to lodge FIRs within 24 hours, or construe Clause 8(i) and 8(ii) of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Arun Mishra, appearing in person, filed Writ-C No. 10522 of 2022 against the U.P. Electricity Regulatory Commission seeking to quash its 15 March 2022 order relieving him from suo motu Petition No. SM-26 of 2021 and a mandamus to let him appear in those proceedings. He and others had complained that Purvanchal Vidyut Vitaran Nigam Ltd. delayed lodging FIRs in theft cases. The Commission registered the matter (recorded as Appeal No. 263M of 2021) for alleged non-compliance with the Electricity Act, 2003, the Electricity Rules, 2005 and Clause 8(i) and 8(ii) of the U.P. Electricity Supply Code, 2005, and called for the licensee's submissions.

On 20 January 2022 the Commission allowed Mishra to appear and to file an intervention in proper proforma. After hearing that application on 18 February 2022, the 15 March 2022 order held that a suo motu proceeding left no occasion for an intervenor, permitted him only to submit a list of officers who habitually failed to lodge FIRs within 24 hours, and relieved him. The writ was decided at admission, by consent, without a counter-affidavit.

HOLDING-UNITS

INTERPLAY · UPERC-CBR-2019::20(d)(ii)

complainant has no vested right to remain as intervenor in a UPERC suo motu proceeding; Article 226 will not substitute the Commission's discretion absent prejudice

QUESTION

Does a complainant whose complaints led UPERC to register a suo motu proceeding against a licensee acquire a right to remain as an intervenor, so that the High Court will quash an order relieving him and mandamus his continued appearance?

HOLDING

No. Regulation 20(d)(ii) vests a discretion in the Commission to permit a person who has filed objections, or any other person it considers appropriate, to participate if it considers that participation will facilitate the proceedings and the decision. The petitioner's intervention remained pending; the Commission relieved him on the footing that a suo motu proceeding left no occasion for an intervenor, while directing him to submit a list of officers who habitually failed to lodge FIRs within 24 hours. Once that discretion is vested, the writ court cannot take another view in the absence of cogent material showing why impleadment was necessary. The petitioner failed, on a pointed query, to show any prejudice from the order operating. Given that the proceedings were suo motu, the Court declined to differ from the Commission. The writ was held wholly misconceived and dismissed; costs made easy. ¶ 12-17

QUALIFIER

The Court did not decide the merits of the suo motu proceeding or whether licensee officers had failed to lodge theft FIRs within 24 hours.

FLAG Extract unnumbered; paras are sequential blocks of the 13.4.2022 order from 'Heard Sri Arun Mishra' (1 heard; 2 decided at admission by consent without a response; 3 prayers; 4 UPERC background and Clause 8(i), 8(ii); 5 intervention invited; 6 15.3.2022 order quoted; 7 writ filed; 8 Regulation 20 quoted; 9 petitioner's argument; 10 Commission's argument; 11 heard; 12–17 ratio and dismissal). Regulation 20(d)(ii) of the 2019 Conduct of Business Regulations is not a catalog key. The Court cited 'Clause 8(i), 8(ii)' of the Supply Code, 2005 only as the subject of the UPERC proceeding and did not construe them (parent catalog UP-2005::8). The proceeding is named SM-26 of 2021 in the prayer, Appeal No. 263M of 2021 in the Court's narrative, and Petition No. 265M of 2021 in the petitioner's argument — recorded as the judgment states them. Catalog hit s135-1A-24-hour-FIR-is-mandatory is a false positive for the underlying complaint, not a holding. No precedent cited.

PRINCIPLE TAGS

uperc-cbr-20d-ii-intervenor-participation-is-discretionary

Regulation 20(d)(ii) of the 2019 Conduct of Business Regulations vests a discretion in UPERC to permit a person to participate only if participation will facilitate the proceedings and the decision. A complainant whose complaints triggered a suo motu proceeding against a licensee for delay in lodging theft FIRs has no vested right to remain as an intervenor merely because an intervention application was invited or filed. Relieving him, while allowing a list of defaulting officers, was not interfered with. ¶ 8, 12-17

article-226-will-not-substitute-uperc-discretion-absent-prejudice

Once participation is discretionary, the writ court will not take a different view from the Commission's refusal of intervention in a suo motu proceeding unless cogent material shows why impleadment was necessary. The petitioner failed to show any prejudice from the 15.3.2022 order operating. The writ was dismissed as wholly misconceived. ¶ 14-17

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PURVANCHAL VIDYUT VITARAN NIGAM LTD. OR ITS OFFICERS FAILED TO LODGE THEFT FIRS WITHIN 24 HOURS

The subject of suo motu Petition No. SM-26 of 2021 / Appeal No. 263M of 2021. The Commission allowed the petitioner only to submit a list of such officers. The High Court did not try the allegation. ¶ 4, 6, 13

NOT DECIDED — CONSTRUCTION OF CLAUSE 8(I) AND 8(II) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Recorded as among the provisions whose non-compliance was the subject of the UPERC proceeding on 27.10.2021. Not construed. ¶ 4

NOT DECIDED — CONSTRUCTION OF THE ELECTRICITY ACT, 2003 AND THE ELECTRICITY RULES, 2005 ON THE DUTY TO LODGE AN FIR IN THEFT CASES

Likewise recorded as the subject of the 27.10.2021 UPERC hearing. Not construed. The 24-hour FIR guideline is mentioned only in the Commission's 15.3.2022 extract. ¶ 4, 6